

Understanding the United Kingdom

Chapter Eleven Political System and Economy

A. Political System

Government of United Kingdom

Form of government	Constitutional monarchy
Head of state	Monarch
Head of government	Prime minister
Legislature	Bicameral legislature: House of Commons, 646 members House of Lords, 713 members (595 life peers and 118 hereditary members)
Voting qualifications	Universal at age 18
Constitution	Unwritten; partly statutes, partly common law and practice
Highest court	House of Lords High Court of Justiciary (the supreme criminal court of Scotland)

1. Parliamentary Democracy

Great Britain (UK) is a parliamentary democracy with a constitutional Monarch as Head of State with limited powers.

The principle behind British democracy is that the people elect Members of Parliament (MPs) to the House of Commons in London at a general election, held no more than five years apart. Most MPs belong to a political party, and the party with the largest number of MPs in the House of Commons forms the government.

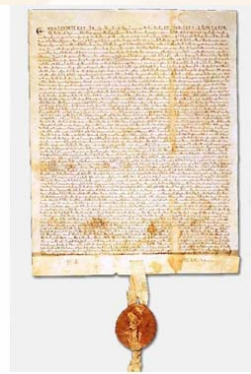
Britain's democratic government is based on a constitution composed of various historical documents, laws, and formal customs adopted over the years.

2. Constitution

The British constitution regulates how the country is governed and ensures that the government acts at all times within the rule of law and that the government serves the people, and not that the people serve the government.

In Britain, monarch was gradually replaced by a limited, representative government based on **unwritten constitution**. The constitution is said to be "unwritten" because it is taken partly from various written documents and partly from unwritten customs and laws.

These legal rules and laws are contained in documents such as **Magna Carta** 1215, **The Petition of Rights** 1628, the **Bill of Rights** 1689, the **Act of Settlement** 1701, the **Act of Union** 1707 and the Act of Union 1800. The two main features of the British Constitution are the Rule of Law and the Supremacy of Parliament.



The most important part of the English constitution is the **Magna Carta**, or **Great Charter**, sealed by King John in 1215. This document limited the king's power in several ways. Chiefly, it took away his right to collect taxes without the noble's consent. A few years

later John's successor, Edward I, called the first meeting of Parliament, England's legislative body.



Magna Carta (Great Charter)

King John of England set his seal to Magna Carta on June 15, 1215. In 1215, King John of England taxed his subjects and the Church of England heavily to cover the expenses of government. Church authorities and the king's barons threatened a civil war if the king did not sign a document to proclaim and protect their freedoms. That document was called the Magna Charta, or Great Charter. The document limited the power of the English monarchy and granted rights to John's vassals. Many English legal traditions, including the right to trial by jury and equal access to courts for all citizens, had their origins in Magna Carta. The Great Charter is one of the most famous documents in history. Regarded as the foundation of English civil liberty, it also stands as the historic prototype of later declarations of human freedom in various lands.



James II, Catholic King

The **Glorious Revolution** of 1688 put power solidly into the hands of Parliament. No law could be passed, no tax collected, no army maintained without Parliament's consents. By this time, Parliament was made up of two houses. Members of the House of Lords were nobles who held their seats by right of inheritance. Members of the House of Commons were elected. Following the Glorious Revolution, the House of Commons began to assume more power than either the king or the House of Lords.

The democratically elected House of Commons can alter these laws with a majority vote. The constitution continually evolves as new laws are passed and judicial decisions are handed down. All laws passed by Parliament are regarded as constitutional, and changes or amendments to the constitution occur whenever new legislation overrides existing

law. Although the Crown gives its royal assent to legislation, this is a mere formality.



The Lords and Commons presenting the crown to William and Mary in the Banqueting House



King William III and Queen Mary II



Mary II, Queen of England

As the daughter of King James II, she made it possible for her Dutch husband to become co-ruler of England after he had overthrown James's government. Although her father and mother were converts to Roman Catholicism, Mary was brought up a Protestant. In November 1677 she was married to her cousin William.

William III

Stadholder of the United Provinces of the Netherlands as William III (1672–1702) and king of Great Britain (1689–1702), reigning jointly with Queen Mary II (until her death in 1694).



3. The Constitutional Monarchy



The politics of the United Kingdom of Great Britain and Northern Ireland takes place in the framework of a constitutional monarchy, in which the Monarch is head of state and the Prime Minister of the United Kingdom is the head of government.

Constitutional monarchy means that the power of the monarch is limited by the country's constitution, the legal authority is given to Parliament and the executive authority to the government. The Sovereign reigns, but does not rule. The country is governed in the name of the Sovereign by His or Her Majesty's Government who is responsible to the Parliament.

Executive power is exercised by the UK government, the devolved governments of Scotland and Wales, and the Executive of

Northern Ireland. Legislative power is vested in both the government and the two chambers of Parliament, the House of Commons and the House of Lords, as well as in the Scottish parliament and Welsh and Northern Ireland assemblies. The judiciary is independent of the executive and the legislature, though several senior judges are still members of the House of Lords.

The British monarchy has been a hereditary position since the 9th century. **Primogeniture**, the passing of the throne to the eldest son when a monarch dies, has been the rule of succession, and when there are no sons, the eldest daughter ascends the throne. This was the case when Elizabeth II succeeded to the throne in February 1952 upon the death of her father, George VI. Her husband, Prince Philip, has the title of Prince Consort, but no rank or privileges. The current heir to the throne is Elizabeth II's eldest son, Charles, Prince of Wales. According to the Act of Settlement of

1701, only Protestants are eligible to succeed to the throne. A **regent** may be appointed to rule for the sovereign if he or she is underage.



Queen Elizabeth II in Coronation robes // Queen Elizabeth II and Prince Philip at the official coronation (2 Jun 1953)



Elizabeth II became queen of the United Kingdom of Great Britain and Northern Ireland in 1952 upon the death of her father, King George VI.



Queen Elizabeth II

Left-At the wedding of her son Prince Edward to Sophie Rhys-Jones in 1999
 Right-The Queen attends the annual Chelsea Flower Show in 2006



As the official head of state, the monarch formally summons and dismisses Parliament and the ministers of the Cabinet. The monarch also serves as head of the judiciary, commander

in chief of the armed forces, and Supreme Governor of the Church of England and the Church of Scotland. In reality, the government carries out the duties associated with these functions. Theoretically, the monarch appoints all judges, military officers, diplomats, and archbishops, as well as other church officers. The monarch also bestows honors and awards, such as knighthoods and peerages. In reality, all of these appointments are made upon the advice of the prime minister. The prime minister declares war and peace and concludes treaties with foreign states in the

name of the crown. The monarch serves as the ceremonial head of the Commonwealth of Nations and is the ceremonial head of state for 16 Commonwealth countries.

The real work of the monarchy consists largely of signing papers. The monarch has the right to be consulted on all aspects of national life and review all important government documents. The monarch may also meet with the Privy Council, a now largely ceremonial body made up of Cabinet members that serves in an advisory capacity to the monarch. Since Britain is a democracy, the monarchy could potentially be abolished if a majority of the population decides to do so. In the early 21st century the monarchy generally remained popular. Tourism related to the royal family brings a substantial amount of money into the country.



Left- Queen Elizabeth II, wearing the English crown during her coronation in 1953
Right- Queen Elizabeth II, wearing the English crown for her eightieth birthday



Queen Elizabeth II, accompanied by her husband, Prince Philip, waving to well-wishers as she rides to St. Paul's Cathedral for a service celebrating her Golden Jubilee in 2002



Elizabeth II, on a walkabout to celebrate her 80th birthday, 2006



Queen Elizabeth II riding to trooping the color (a ceremony performed by regiments of the Commonwealth and the British Army) for the last time in July 1986. The queen rode the same horse, 'Burmese', originally presented by Canadian government, from 1969 to 1986. With Charles, Prince of Wales, on the white horse to the left, and Philip, Duke of Edinburgh on the bay horse behind the Queen.



Buckingham Palace

Buckingham Palace in Westminster is the official London residence of the British sovereign



Guards at Buckingham Palace



Princess Elizabeth



Philip, duke of Edinburgh



A Royal Wedding

Princess Elizabeth and Lieutenant Philip Mountbatten marry in 1947. Princess Elizabeth was just 13 years old when she met her future husband. A distant cousin of hers, and Prince of Greece and Denmark, the handsome naval officer was often present at the social functions she attended. Seven years later, they announced their engagement and the wedding was set for November 20, 1947. The couple was married at Westminster Abbey in London.



Elizabeth II with Prince Charles, Prince Philip, and Princess Anne

Left-Princess Elizabeth and the duke of Edinburgh with Prince Charles, December 1948. Elizabeth married Prince Philip, Duke of Edinburgh, in 1947. The couple have four children and eight grandchildren



The Queen, Prince Andrew and headmaster James Edwards
The Queen takes her son Prince Andrew to Heatherdown preparatory school in Berkshire for the first time in 1968



Princess Elizabeth with Prince Philip, Prince Charles, and Princess Anne



Elizabeth II with (from left) Princess Anne, Prince Philip, Prince Andrew, and Prince Charles

4. The Parliament

The Parliament of the United Kingdom of Great Britain and Northern Ireland is the supreme legislative body in the United Kingdom and British overseas territories. At its head is the Sovereign, Queen Elizabeth II. Government is drawn from and answerable to it.

The parliament is **bicameral**, with an upper house, the House of Lords, and a lower house, the House of Commons. The Queen is the third component of the legislature. The House of Commons is far more influential than the House of Lords.

The House of Lords includes two different types of members: the Lords Spiritual (the senior bishops of the Church of England) and the Lords Temporal (members of the Peerage) whose members are not elected by the population at large, but are appointed by the Sovereign on advice of the Prime Minister. Prior to the opening of the Supreme Court in October 2009 the House of Lords also performed a

judicial role through the Law Lords. The House of Commons is a democratically elected chamber with elections to it held at least every 5 years.

Parliamentary sessions are held each year and begin in October or November. The two Houses of Parliament meet in separate chambers at the Houses of Parliament in London, officially called the *New Palace of Westminster*. The Parliament of the United Kingdom legislates for the entire nation and includes representatives from England, Scotland, Wales, and Northern Ireland. By constitutional convention, all government ministers, including the Prime Minister, are members of the House of Commons or, less often, the House of Lords, and are thereby technically accountable to the respective branches of the legislature.



Britain's Queen Elizabeth II leaves Buckingham Palace in the Royal Carriage to attend the State Opening of Parliament on Dec. 3, in London, England.



Queen Elizabeth II travels in a carriage from Buckingham Palace to the Houses of Parliament in central London, Dec. 3, for the State Opening of Parliament



The Queen arriving at Parliament for State Opening



Queen Elizabeth II Arrives at the Houses of Parliament



Britain's Queen Elizabeth II walks with Prince Philip in the Palace of Westminster, on her way to the House of Lords to make her annual speech at the State Opening of Parliament in London, Wednesday Dec. 3



Yeomen of the Guard line up inside the House of Lords in central London, as part of a ceremonial search ahead of the Queen's speech for the State Opening of Parliament. Yeomen of the Guard, the oldest of the royal bodyguards, armed with lanterns, search the cellars of the Palace of Westminster, a practice which dates back to the Gunpowder Plot of Nov. 5, 1605. This is followed by a more scientific police search.



Queen Elizabeth II and the Duke of Edinburgh sit on golden thrones

Britain's Queen Elizabeth II speaks from the throne, as Prince Philip listens, in the House of Lords, during the State Opening of Parliament in London, Dec. 3. The speech sets out the government's plans for the next parliamentary session



A general view of the ceremonial procession which accompanies Britain's Queen Elizabeth II, as she travels the Mall, from the Houses of Parliament after the State Opening of Parliament

History

The Parliament of Great Britain was formed in 1707 following the ratification of the Treaty of Union by both the Parliament of England and Parliament of Scotland passing Acts of Union. However, in practice the parliament was a continuation of the English parliament with the addition of Scottish MPs and peers. Parliament was further enlarged by the ratification by the Parliament of Great Britain and the Parliament of Ireland of the Act of Union (1800), which abolished the Irish Parliament; this added 100 Irish members to the Commons and 32 to the Lords to create the Parliament of the United Kingdom of Great Britain and Ireland.

England has been called "the mother of parliaments", its democratic institutions having set the standards for many democracies throughout the world, and the United Kingdom parliament is the largest **Anglophone** legislative body in the world.

The Parliament of England had itself originated from the early medieval councils that advised the sovereigns of England. Later, Parliament served to supplement royal revenues by making grants of taxation—that is, by granting the monarch's request for extra subsidies to pay for wars. The crown invited all great nobles and church leaders to attend these councils. By the end of the 13th century representatives from the counties, called *knights of the shire*, and representatives of the towns, called *burgesses*, were also being summoned to attend regularly. The knights and the burgesses eventually came to sit separately from the nobles and church leaders, in what eventually became the *House of Commons*. The nobles and church leaders sat in what came to be called the *House of Lords*. By the end of the Middle Ages Parliament had taken on a form that would be recognized today. It legislated and approved taxes and passed laws.

In theory, supreme legislative power is vested in the Queen-in-Parliament; in practice, real power has passed from the crown to the Lords to its final resting place in the House of Commons over the course of centuries. For the past 280 years the monarch's royal assent to legislation has been given automatically and the Sovereign generally acts on the advice of the Prime Minister. The powers of the House of Lords are limited. Today the House of Lords can only delay legislation.

Parliament is elected roughly every five years and is dissolved by the crown on the advice of the prime minister, who then calls a general election.

Interesting Fact

No King or Queen has entered the House of Commons since 1642, when Charles I stormed in with his soldiers and tried to arrest five members of Parliament who were there.

The House of Lords



House of Lords Chamber





The Queen walks with Prince Philip in the Palace of Westminster, on her way to the House of Lords

The House of Lords was previously a largely hereditary aristocratic chamber, with 574 life peers, 92 hereditary peers, and 26 bishops;

The House of Lords today is more a place of discussion and debate than one of power, and it normally passes legislation already approved by the House of Commons. Its members are not elected. The House of Lords comprises the lords temporal, the lords spiritual, and the law lords. The lords temporal are either hereditary peers or life peers. Life peers are appointed by the monarch for the duration of the person's lifetime. These appointments are usually made in recognition of outstanding careers or contributions to society. Famous people who have been made peers are former British Prime

ministers Winston Churchill and Harold Wilson. The lords spiritual include the archbishops of Canterbury and York; the bishops of London, Durham, and Winchester; and the 21 next most senior bishops. Prior to the opening of the Supreme Court in October 2009 the House of Lords also performed a judicial role through the Law Lords.

The House of Lords was stripped of most of its power in 1911, and now its main function is to revise legislation.

The powers of the House of Lords are limited because most Britons believe that in a modern democracy a nonelected house should only act as a forum for opinion, one that is comparatively free from party politics and pressures.

The House of Commons



The House of Commons

MPs hold most of their debates in the House of Commons Chamber. The Speaker who controls proceedings sits on a raised chair at one end of the Chamber. The Government sits on the benches on the Speaker's right, whilst members of the Opposition party MPs occupy the benches on the Speaker's left. The Opposition's job is to oppose the Government. The biggest Opposition party sits directly across from the Government benches. The red lines in front of the two sets of benches are two-sword lengths apart; a Member is traditionally not allowed to cross the line during debates. The lines are there to prevent either side attacking the other during a debate. Of course, MPs are not likely to attack each other these days.

The Countries of the United Kingdom are divided into parliamentary constituencies of broadly equal population. Each constituency elects a Member of Parliament (MP) to the House of Commons at General Elections and, if required, at by-elections (an election held to fill a political office that has become vacant between regularly scheduled elections, known in the United States as a special election). MPs in the House of Commons may remain MPs until Parliament is dissolved, which must occur within 5 years of the last general election, as stated in the Parliament Act 1911.

Over the history of the House of Commons, the number of Members of Parliament (MPs) has varied for different reasons, with increases in recent years due to increases in the population of the United Kingdom. There are currently 646 MPs, corresponding to approximately one for every 92,000 people, or one for every 68,000 parliamentary electors.

In modern times, all Prime Ministers and Leaders of the Opposition have been drawn from the Commons, not the Lords.

The House of Commons is the source of real political power in the United Kingdom. Its members are democratically elected by citizens over the age of 18. Certain groups that are denied the right to vote, including members of the House of Lords, and those convicted of corrupt or illegal election practices in the previous five years.

General Elections

A session of Parliament lasts for five years unless the Prime minister dissolves Parliament. Although the monarch officially dissolves Parliament, this happens only after the Prime Minister calls for it.

At the end of the five year or before, a general election has to take place so new members of parliament can be elected by the people. The election is called by the Prime Minister.

General Election in the US is like voting for a Congressman or Senator. However, unlike the US, the voters can only vote for a MP to represent them in the House of Commons, they do not choose the Prime Minister (PM). He/she is voted for within their party. The Lords are appointed or inherited.

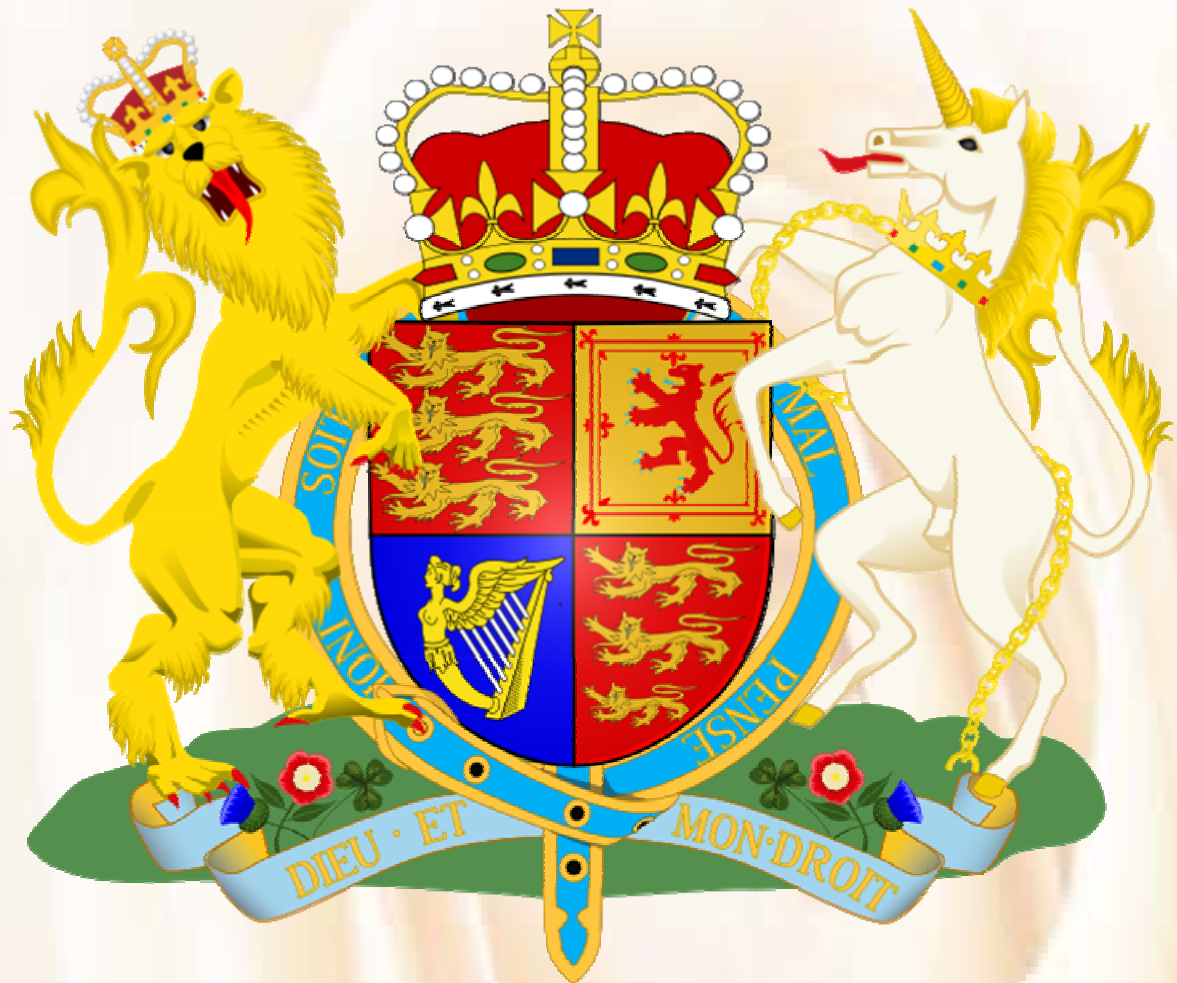
The last General Election was in 2005, when Labor won 356 seats and became the leading party and therefore the Government.

Who can become a MP?

People are nominated as candidates to become MPs. Any one over the age of 21 can be a candidate. When an MP gets the most votes for his constituency he gains a seat. This means he has a place in Parliament.

No individual may be a member of both Houses, and members of the House of Lords are legally barred from voting in elections for members of the House of Commons.

5. The Government



Her Majesty's Government Coat of Arms

Her Majesty's Government is the government of the United Kingdom. It is answerable to the House of Commons. However, neither the Prime Minister nor members of the Government are elected by the House of Commons. Instead, the Queen requests the person most likely to command the support of a majority in the House, normally the leader of

the largest party in the House of Commons, to form a government. So that they may be accountable to the Lower House, the Prime Minister and most members of the Cabinet are, by convention, members of the House of Commons.

Under the Constitution of the United Kingdom, executive authority notionally lies with the monarch but is exercised in practice by her ministers. Her Majesty's Government is the collective name for these ministers, and it is effectively an executive authority for the UK.

The Prime Minister



James Gordon Brown (born 20 February 1951) is the Prime Minister of the United Kingdom and Leader of the Labor Party. Brown became Prime Minister in June 2007, after the resignation of Tony Blair and three days after becoming leader of the governing Labor Party. Immediately before this he had served as Chancellor of the Exchequer in the Labor government from 1997 to 2007 under Tony Blair.

Brown has a PhD in history from the University of Edinburgh and spent his early career working as a television journalist. He has been a Member of Parliament since 1983.

The Prime Minister of the United Kingdom of Great Britain and Northern Ireland is the Head of Her Majesty's Government. He or she is the leader of the party that holds the most seats in the House of Commons. The Prime Minister and Cabinet (consisting of all the most senior government department heads) are collectively accountable for their policies and actions to the Sovereign, to Parliament, to their political party, and ultimately to the electorate.

The monarch goes through the ceremony of selecting as prime minister the person from the House of Commons who is head of the majority party. The prime minister presides over the Cabinet and selects the other Cabinet members, who join him or her to form the government. Acting through the Cabinet and in the name of the monarch, the prime minister exercises all of the theoretical powers of the crown including making appointments. Every

week the Prime Minister appears before the House of Commons and must answer questions put to him or her by the members of Parliament.

In the past, prime ministers also came from the House of Lords. Today, in the unlikely circumstance that a peer (a member of the House of Lords) is sought as a prime minister by one of the parties, he or she must first resign from the House of Lords and gain election to the House of Commons.

The Prime Minister is based at 10 Downing Street, which along with most government departments, is located in Westminster. The current Prime Minister is Gordon Brown, leader of the Labor Party. He was appointed by Queen Elizabeth II on 27 June 2007. He leads a government composed of 127 ministers, mostly Labor Party MPs.



Right-Tony Blair

Left-Mrs. Thatcher and Gordon Brown



Number 10 Downing Street

Number 10 Downing Street in London has been the official residence of the British prime minister since Sir Robert Walpole in 1732.

The Prime Minister also has a house in the country called **Chequers** near Ellesborough in Buckinghamshire, England, which was given to the nation as a country retreat for the serving Prime Minister by the Chequers Estate Act 1917. It is used as the Prime Minister's non-London residence. If the PM needs to hold a private conference of some of his Ministers or receive foreign visitors over a weekend, Chequers is usually where it is done. It is also used by Prime Ministers to entertain guests as a special privilege.



Chequers-The official country residence of British Prime Ministers since 1921

The Cabinet

The Cabinet is the collective decision-making body of Her Majesty's Government, composed of the Prime Minister and some 22 Cabinet Ministers, the most senior of government ministers.

H.M. Ministers, and especially Cabinet Ministers, are selected primarily from the elected members of House of Commons, but also from the House of Lords, by the Prime Minister.

The most important ministers are called Secretaries of State and they form the Cabinet. The Secretaries of State are in charge of a Government Department (a ministry). Each minister is responsible for his department, and makes sure that his department applies the policy of the government.

The prime minister serves as the first lord of the treasury and as minister for the civil service.

In addition to the various secretaries of state, the Cabinet includes ministers who hold traditional offices—such as the Lord President of the Council, the Paymaster General, and the Lord Privy Seal— and Ministers without Portfolio, who do not have specific responsibilities but are assigned to specific tasks as needed. The Lord Chancellor holds a unique position. The Lord Chancellor's executive duties as a Cabinet member include being responsible for legal affairs in the United Kingdom, but he or she is also head of the judiciary, which is a separate part of the British government.

The Prime Minister has the power to move members of the Cabinet from post to post, or to drop individuals from the Cabinet entirely. Former Cabinet ministers may retain their positions as members of Parliament.

The Cabinet meets on a regular basis, usually weekly on a Tuesday morning notionally to

discuss the most important issues of government policy, and to make decisions. For a long period of time, Cabinet met on a Thursday, and it was only after the appointment of Gordon Brown as Prime Minister that the meeting day was switched to Tuesday. The length of meetings varies according to the style of the Prime Minister and political conditions, but today meetings can be as little as 30 minutes in length. The Prime Minister normally has a weekly audience with The Queen thereafter.

Currently, following Gordon Brown's reshuffle in June 2009, there are 31 ministers who are members of the Cabinet or attend its meetings, compared with only nine in Winston Churchill's Cabinet which co-ordinated Britain's wartime defenses in 1940.

The Cabinet developed during the 18th century out of informal meetings of key government ministers during the reigns of the

Hanoverian monarchs, who took relatively little interest in politics. During the 19th century this committee of key ministers evolved into an effective body that wielded the monarch's executive power.

Two key doctrines of Cabinet government are collective responsibility and ministerial responsibility. Collective responsibility means that the Cabinet acts unanimously, even when Cabinet ministers do not all agree upon a subject. If an important decision is unacceptable to a particular Cabinet member, it is expected that he or she will resign to signify dissent. Ministerial responsibility means that ministers are responsible for the work of their departments and answer to Parliament for the activities of their departments. The policy of departmental ministers must be consistent with that of the government as a whole. The ministers bear the responsibility for any failure of their department in terms of administration or policy.



Prime Minister Gordon Brown at a Cabinet Meeting



Prime Minister Gordon Brown (5th L), prepares to chair a cabinet meeting

英国内阁的首脑为首相（Prime Minister），其他组成人员常包括：

First Lord of the Treasury 第一财政大臣（首相兼任）

Secretary of State for Foreign 外交大臣

Lord President of the Council 枢密院大臣

Lord Chancellor 大法官

Chancellor of the Exchequer 财政大臣

Chancellor of the Duchy of Lancaster 兰开斯特公爵郡大臣

Lord Privy Seal and Leader of the House of Commons 掌玺大臣兼
下院领袖

Minister of Defense 国防大臣

Secretary of state for Commonwealth Relations 联邦关系事务大臣

Secretary of State for the Colonies 殖民地事务大臣

Secretary of State for Scotland 苏格兰事务大臣

Minister of Labor and National Service 劳工大臣

Minister for Housing and Local Government 住房及地方政府事物大臣

Minister of Town and Country Planning 都市及乡村计划大臣

Minister of Health 卫生大臣

Minister oi Educatlon 教育大臣

President of the Board of Trade 贸易大臣

Minister of Agriculture and Fisheries 农业和渔业大臣

Minister of Pensions and National Insurance 年金及国民保险大臣

此外还有非内阁阁员的政府部门首长：

First Lord Of the Admiralty 海军大臣

Secretary of State for War 陆军大臣

Secretary of State for Air 空军大臣

Minister of Fuel and Power 燃料电力大臣

Minister of Transport 运输大臣

Minlster of Supply	供应大臣
Minister of Economic Affairs	经济事务大臣
Minister of Food	粮食大臣
Minister of Civil Aviation	民航大臣
Minister of Works	工程大臣
Paymaster General	主计大臣
Labor secretary	劳工部长
Postmaster General	邮政大臣
Attorney General	检查总长
Solicitor General	副检查总长
Lord Advocate	苏格兰检察总长



Shadow Cabinet

The Shadow Cabinet is a senior group of opposition spokespeople in the Westminster system of government (a democratic parliamentary system of government) who together under the leadership of the Leader of the Opposition form an alternative cabinet to the government's, whose members *shadow* or mark each individual member of the government. Members of a shadow cabinet are often but not always appointed to a Cabinet post if and when their party gets into government. It is the Shadow Cabinet's responsibility to pass criticism on the current government and its respective legislation, as well as offering alternative policies.

In the United Kingdom, Canada and Australia the major opposition party and specifically its shadow cabinet is often called *His* or *Her Majesty's Loyal Opposition*. The adjective "loyal" is used because, while the role of the opposition is to oppose Her Majesty's

Government, it does not dispute the sovereign's right to the throne and therefore the legitimacy of the government.

In most countries, a member of the shadow cabinet is referred to as a Shadow Minister. In Canada, however, the term Opposition Critic is more usual.

The Privy Council

The Cabinet is technically the executive committee of Her Majesty's Privy Council. The Privy Council is a large, and generally ceremonial, body of more than 450 members that developed out of the royal council that existed in the Middle Ages. By the 18th century the Privy Council had taken over all the powers of the royal council. The Privy Council comprises all current and former Cabinet members, as well as important public figures in Britain and the Commonwealth. The council advises the monarch and arranges for the formal handling of documents. It has a large

number of committees, each with a specific task, such as dealing with outlying islands, universities, or legal matters. The most important committee is the Judicial Committee of the Privy Council, which is the highest court of appeal for certain nations in the Commonwealth, some church-related appeals, and for disciplinary committees of some professions.



Victoria held her first Privy Council meeting on the day of her accession in 1837.

The Judiciary



Britain has a long judicial history. Its legal system has been emulated throughout the world and many of its key principles

and rights are part of U.S law. The principles derived from British law include the right to trial by jury; the right to due process of law; freedom from unlawful imprisonment, called the writ of **habeas corpus**; the trial system of prosecution and defense; and the presumption that a person is innocent until proven guilty.

The judicial system has its roots in the Anglo-Saxon period, when the monarch established local courts to provide justice for all subjects. Monarchs delegated the power to hear cases to royal justices, who presided over courts in the monarch's name.

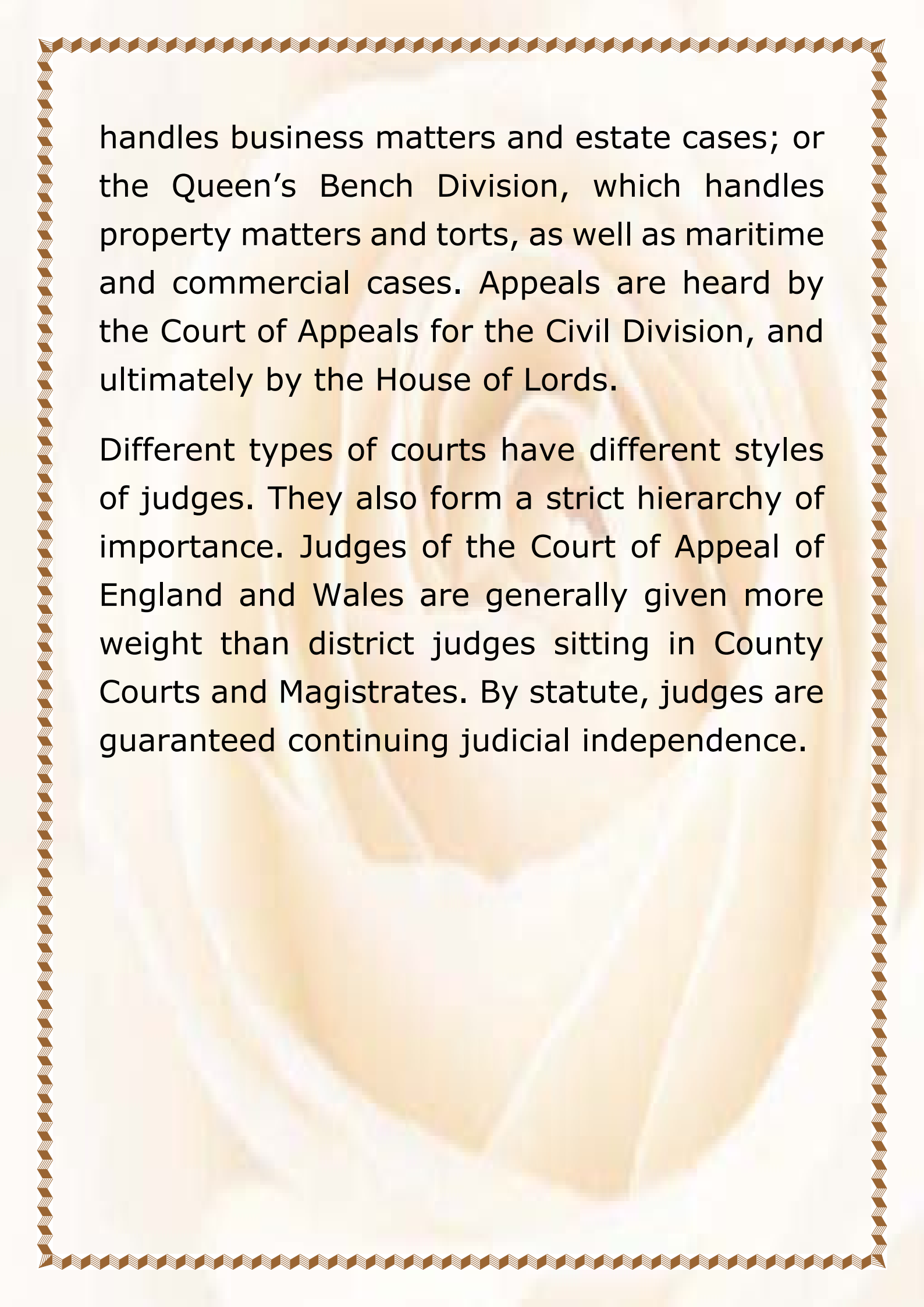
The British legal system relies on common law, which is based on custom and on decisions in

previous legal cases, called precedents. Common law originated in the 12th century, growing out of the rules and traditions that ordinary people had worked out over time. Through the centuries common law evolved as it incorporated legal decisions made in specific cases, and it remains the basis of British law except when superseded by legislation. Unlike the United States, Britain does not have a Supreme Court that reviews legislation to determine its constitutionality; that responsibility falls to Parliament.

Britain has several layers of courts and two kinds of legal proceedings, criminal and civil. Criminal law is concerned with acts punishable by the state, such as murder. Civil law involves disputes between private parties, either individuals, organizations or companies. The final court of appeal for both civil and criminal cases is the House of Lords, where appeals are heard by the law lords.

Criminal cases are handled in one of two ways. Petty offenses, such as simple theft or vandalism, are brought before a local magistrate, or justice of the peace (JP). These unpaid magistrates are appointed by the Lord Chancellor and are members of the community who are assisted by legal experts. The vast majority of criminal cases in Britain are minor enough to be handled by JPs. More serious criminal offenses, such as murder, rape, and robbery, are sent to a Crown Court, where they are tried before a High Court or a circuit judge and a jury of local citizens.

Civil cases are heard in county courts before a single judge. County courts hear cases dealing with families, property, contracts, and torts. Above the county courts is the High Court, which hears more complicated civil cases. High Court cases are sent to one of three divisions: the Family Division, which handles complex divorce cases, adoptions, and matters relating to children; the Chancery Division, which



handles business matters and estate cases; or the Queen's Bench Division, which handles property matters and torts, as well as maritime and commercial cases. Appeals are heard by the Court of Appeals for the Civil Division, and ultimately by the House of Lords.

Different types of courts have different styles of judges. They also form a strict hierarchy of importance. Judges of the Court of Appeal of England and Wales are generally given more weight than district judges sitting in County Courts and Magistrates. By statute, judges are guaranteed continuing judicial independence.

Lord Chief Justice and Lord Chancellor



Lord Chief Justice Lord Philips (r) with Lord Chancellor Jack Straw, Justice Minister

On 3rd April 2006, when the Constitutional Reform Act 2005 came into force, the Lord Chief Justice became head of the judiciary of England and Wales, a role previously held by the Lord Chancellor. The Lord Chief Justice is also the presiding judge of the Criminal Division of the Court of Appeal. The first Lord Chief Justice to act as head of the judiciary

after the Lord Chancellor relinquished that role was Lord Phillips of Worth Matravers.



Lord Chief Justice PHILLIPS OF WORTH MATRAVERS

Under the Constitutional Reform Act 2005, the Lord Chief Justice has some 400 statutory duties. His key responsibilities include:

- Representing the views of the judiciary of England and Wales to Parliament and Government.
- The welfare, training and guidance of the judiciary in England and Wales within resources made available by the Lord Chancellor. The Lord Chief Justice discusses with Government the provision of resources for the judiciary.
- The deployment of judges and allocation of work in courts in England and Wales.

He and the senior judiciary are supported by a team of civil servants who form the Directorate of Judicial Offices.



Jack Straw, the current Lord High Chancellor of Great Britain and Secretary of State for Justice

Although the Lord Chancellor is no longer a judge, he still exercises disciplinary authority over the judges, jointly with the Lord Chief Justice. He also has a role in appointing judges. In law reports, the Lord Chief Justice is referred to as (for example) "Smith LCJ", and the Lord Chancellor as "Smith LC".

The Supreme Court



Supreme Court building

As of 1 October 2009, the new Supreme Court of the United Kingdom officially takes over the legal powers of the old Appellate Committee of the House of Lords as the highest Court in the land

The Supreme Court of the United Kingdom is the supreme court in all matters under English law, Welsh law, Northern Irish law and Scottish civil law (the court has no authority over criminal cases in Scotland, where the High Court of Justiciary remains the supreme criminal court.) It sits in the Middlesex Guildhall in Westminster, London, which it shares with the Judicial Committee of the Privy Council.

The Supreme Court was established by Part 3 of the Constitutional Reform Act 2005 and started work on 1 October 2009. It assumed the judicial functions of the House of Lords, which were exercised by the Lords of Appeal in Ordinary (Law Lords). Its jurisdiction over devolution matters had previously been held by the Judicial Committee of the Privy Council. Its title, "The Supreme Court," has led some British lawyers to be concerned that it might eventually take on powers like the American

Supreme Court, which can strike down laws. Its proponents say the court is a healthy separation of the judiciary from the legislature.

The judges of the Supreme Court of the United Kingdom are known as Justices of the Supreme Court, and they are also Privy Counselors.



The 11 Justices mark the start of the legal year at a traditional service in Westminster Abbey

The Court of Appeal

Judges of the Court of Appeal are known as Lord Justices, and they too are Privy Counselors. Before swearing in they may be addressed as *The Honorable Lord Justice Smith*, and after swearing in as *the Right Honorable Lord Justice Smith*. Female Lord Justices are only known as Lady Justices informally, addressed as "My Lord" or "My Lady". In law reports, referred to as "Smith LJ", and, for more than one judge, "Smith and Jones LJJ". Formerly, Lord Justices of Appeal could only be drawn from barristers of at least 10 years' standing. In practice, much greater experience was necessary and as of 21 July 2008, a potential Lord Justice of Appeal must satisfy the judicial-appointment eligibility condition on a 7-year basis.

High Court

High Court judges are not normally Privy Counselors and are referred to as the (Right)

Honorable Mr/Mrs Justice Smith, dressed as "My Lord" or "My Lady". In law reports, referred to as "Smith J", and, for more than one judge, "Smith and Jones JJ".

Solicitors and Barristers

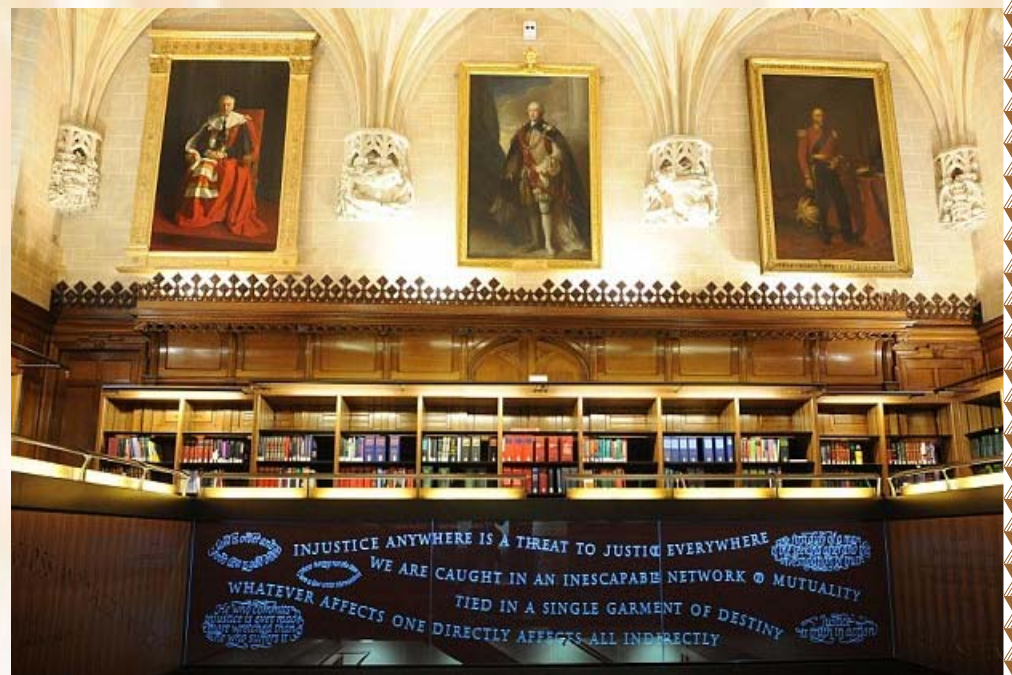
Those who practice law in Britain are divided into solicitors and barristers. Solicitors perform the everyday work of the law, particularly legal matters that can be handled solely with paperwork. Barristers plead cases in court. In Scotland barristers are called advocates. Solicitors engage barristers when they believe a client needs to go to court. Eminent barristers and, since 1996, some solicitors, may become Queen's Counselors, or QCs. When they do it is said that they "take silk," because they switch from wearing cotton gowns to silk gowns in court. Barristers with long and distinguished careers may be chosen to become crown judges by the Lord Chancellor, the head of the judicial system in England and

Wales. Scotland and Northern Ireland have their own legal systems.



Top: examples of court dress worn, and below--possible alternative dress. From left: High Court Judge, Circuit Judge, District Judge, Barrister or advocate, Court Clerk, Court Usher. Photograph: PA

Motto: The Supreme Court library spells out the principle that 'Injustice anywhere is a threat to justice everywhere'. The quotation is taken from a letter the late US civil rights leader Martin Luther King wrote in jail



6. The main Political Parties

The UK is a multi-party system and since the 1920s, the two largest political parties have been the *Conservative Party* and the *Labor Party*. Though coalition and minority governments have been an occasional feature of parliamentary politics, the first-past-the-post electoral system used for general elections tends to maintain the dominance of these two parties, though each has in the past century relied upon a third party to deliver a **working majority** in Parliament.

The *Liberal Democrats*, a party formed by the merger of the former Liberal Party and Social Democratic Party in 1988, is the third largest party in the British parliament. It seeks a reform of the electoral system to address the disproportionate dominance of the two main parties that results from the current system.

As well as the three major political parties the UK also has various minor ones, some of whom have seats in parliament.

The leader of the political party with the most MPs in the House of Commons is asked by the Queen to become Prime Minister and to form a government that will manage the country.

The party in power today is the Labor Party which won 356 seats (for their Ministers of Parliament) in the 2005 General Election, while Conservatives 198 seats and Liberal Democrats 62. As the Labor Party won the most seats, its leader at the time, Tony Blair, was asked to form the government.

The current voting system is called "first past the post." This means that the party and candidates receiving the most votes win the election and become the party in power even if they do not receive more than 50 percent of the vote.